IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No.208
CAA-10(ND)/2022

IN THE MATTER OF:
M/s. Moria Tea Estate Ltd. And. M/s. Marvel Global Ltd

…..APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 13.03.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. SP Singh Chawla, Advocate
For the IT Dept	: Adv Puneet Rai along with Adv Nikhil Jain
For the RD	: Ms. Shankari Mishra, Advocate.
For the OL	: Adv. Hemlata Rawat Adv. Aayushmaan Vatsyayana

ORDER

Mr. SP Singh Chawla, Learned Counsel appears for the Applicant. In compliance with the order dated 06.03.2023, the Income Tax Department has filed the report. Mr. Puneet Rai, Learned Counsel appearing for the Income Tax Department submits that there are no objections, since, the Applicant has given an undertaking stating that all tax dues shall be paid.

Ms. Shankari Mishra, Learned Counsel appearing for the RD submits that there are certain observations. The Applicant is directed to file an affidavit/undertaking with respect to the Clause 8 of the Observations within one week.

Subject to the above, order **reserved**.

-SD-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-SD-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Shammy
13.03.2023